

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1945

By: McCane

AS INTRODUCED

An Act relating to landlord and tenant; requiring background checks for employees; providing who may perform the background check; providing for disqualification from employment for certain crimes; requiring a landlord, owner, or operator of an apartment or hotel to require that each employee undergo background screening as a condition of employment, maintain a log accounting for the issuance and return of all keys, and establish policies and procedures for the issuance and return of dwelling unit keys and regulating the storage and access to unissued keys; prohibiting hourly rates for a hotel accommodation; providing an exemption; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 141 of Title 41, unless there is created a duplication in numbering, reads as follows:

A. The landlord, owner, or operator of a public lodging establishment, which shall include apartments and hotels, must require that each employee of the establishment undergo a background screening as a condition of employment.

1 B. The background screening required under subsection A of this
2 section must be performed by a consumer reporting agency in
3 accordance with the federal Fair Credit Reporting Act, and must
4 include a screening of criminal history records and sexual predator
5 and sexual offender registries of all 50 states and the District of
6 Columbia.

7 C. A landlord, owner, or operator of an apartment or hotel may
8 disqualify a person from employment if the person has been convicted
9 or found guilty of, or entered a plea of guilty or nolo contendere
10 to, regardless of adjudication, any of the following offenses:

11 1. A criminal offense involving disregard for the safety of
12 others which, if committed in this state, is a felony or a
13 misdemeanor of the first degree or, if committed in another state,
14 would be a felony or a misdemeanor of the first degree if committed
15 in this state.

16 2. A criminal offense committed in any jurisdiction which
17 involves violence, including, but not limited to, murder, sexual
18 battery, robbery, carjacking, home-invasion robbery, and stalking.

19 SECTION 2. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 142 of Title 41, unless there is
21 created a duplication in numbering, reads as follows:

22 A landlord, owner, or operator of an apartment or hotel, shall do
23 all of the following:
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- 1 1. Require that each employee undergo background screening as a
2 condition of employment;
- 3 2. Maintain a log accounting for the issuance and return of all
4 keys for each dwelling unit; and
- 5 3. Establish policies and procedures for the issuance and return
6 of dwelling unit keys and regulating the storage of, and access to,
7 unissued keys.

8 SECTION 3. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 143 of Title 41, unless there is
10 created a duplication in numbering, reads as follows:

11 A. Operators of a hotel may not offer an hourly rate for an
12 accommodation.

13 B. This section does not apply to an hourly rate charged by an
14 operator of a hotel as a late checkout fee.

15 SECTION 4. This act shall become effective November 1, 2025.

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